

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE BASANT BALAJI

TUESDAY, THE 26TH DAY OF MARCH 2024 / 6TH CHAITHRA, 1946

WP(C) NO. 6906 OF 2024

PETITIONER:

**E.M.VIJAYAN
AGED 88 YEARS
EDAKKATTIL HOUSE, MUNDATHICODE WEST P.O.,
THRISSUR, PIN - 680623
BY ADVS.
J.VISHNU
ANU BALAKRISHNAN NAMBIAR
VINAY VIJAY SHANKER**

RESPONDENTS:

- 1 STATE OF KERALA
REPRESENTED BY THE CHIEF SECRETARY, 2ND FLOOR,
NORTH BLOCK SECRETARIAT, STATUE THIRUVANANTHAPURAM,
PIN - 695001**
- 2 DEPARTMENT OF FINANCE
REPRESENTED BY THE PRINCIPAL SECRETARY GOVT.
SECRETARIAT, THIRUVANANTHAPURAM, PIN - 695001**
- 3 THE DEPARTMENT OF CULTURAL AFFAIRS
REPRESENTED BY THE PRINCIPAL SECRETARY, GOVT.
SECRETARIAT, THIRUVANANTHAPURAM, PIN - 695001**
- 4 THE DIRECTORATE OF CULTURE
REPRESENTED BY ITS DIRECTOR,
ANANTHAVILASAM PALACE, THEKKENADA, FORT P.O,
THIRUVANANTHAPURAM, PIN - 695023**
- 5 THE KERALA SANGEETHA NATAKA AKADEMI
REPRESENTED BY ITS SECRETARY, CHEMBUKKAVU,
THRISSUR, PIN - 680020
By SRI.TONY AUGUSTINE
BY ADV ARAVINDAKSHAN PILLAI**

**THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION
ON 26.03.2024, THE COURT ON THE SAME DAY DELIVERED THE
FOLLOWING:**

JUDGMENT

The petitioner has approached this Court for a direction to pay the arrears of pension revision from 1.7.2019. Ext.P7 is the order dated 1.9.2023 implementing the revision of pension. Ext.P8 is the calculation statement regarding the arrears of pension to be paid from 1.7.2019 to 31.12.2023. The total amount as on 3.1.2024 comes to Rs.2,40,732/-. The limited relief sought now is for disbursal of the arrears of pension as stated in Ext.P8 within a time frame.

2. The learned Government Pleader seeks time to file counter affidavit.

3. Taking into consideration of the limited prayer, I direct respondent Nos.1 to 4 to pay the arrears of pension due from 1.7.2019 till date to the petitioner within a period of three months from the date of receipt of a copy of this judgment.

Sd/-

BASANT BALAJI

JUDGE

ab

APPENDIX OF WP(C) 6906/2024**PETITIONER EXHIBITS**

Exhibit P1	TRUE COPY OF G.O.(RT.)NO.147/2004/CAD DATED 12.03.2004, ISSUED BY 3RD RESPONDENT
Exhibit P2	TRUE COPY OF PROPOSAL NO.E3-1662/21/CAD DATED 16.03.2021, SUBMITTED BY THE DIRECTOR, DIRECTORATE OF CULTURE, BEFORE THE PRINCIPAL SECRETARY, DEPT. OF CULTURE
Exhibit P3	TRUE COPY OF PROCEEDING NO.C2/60/2021/CAD DATED 10.05.2021, ISSUED BY THE PRINCIPAL SECRETARY, CULTURAL AFFAIRS DEPARTMENT
Exhibit P4	TRUE COPY OF THE REVISED PROPOSAL FOR PENSION REVISION SENT BY THE DIRECTOR, DIRECTORATE OF CULTURE, NO.E3-1662/2021/CAD DATED 24.08.2021
Exhibit P5	TRUE COPY OF NOTE#34, DATED 22.02.2022, IN FILE NO.CLAD-C2/60/2021-CLAD PERTAINING TO PAY REVISION
Exhibit P6	A TRUE COPY OF THE JUDGMENT OF THIS HON'BLE COURT IN WPC.NO.26433/2022 DATED 13.03.2023
Exhibit P7	A TRUE COPY OF G.O.(P)NO.22/2023/CLAD DATED 01.09.2023 ISSUED BY THE 3RD RESPONDENT
Exhibit P8	A TRUE COPY OF THE CHART SHOWING THE STATEMENT OF PENSION ARREARS FROM 1.07.2019 TO 31.12.2023

RESPONDENTS EXHIBITS : NIL